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Provision of May 17, 2023
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THE GUARANTOR FOR THE PROTECTION OF PERSONAL DATA

IN THE meeting held today, attended by
Prof. Pasquale Stanzione, President, Prof.
Ginevra Cerrina Feroni, Vice President, Dr.
Agostino Ghiglia and Attorney Guido Scorza, members,
and Dr. Claudio Filippi, Deputy Secretary General;

HAVING REGARD to Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016 (hereinafter, "Regulation");

HAVING REGARD to the Code regarding the protection of personal data, containing provisions for the adaptation of the national legal system to Regulation (EU) 2016/679 (Legislative Decree of June 30, 2003, n. 196, as amended by Legislative Decree of August 10, 2018, n. 101, hereinafter "Code");

HAVING REGARD to the Ethical Rules concerning the processing of personal data in the exercise of journalistic activity (G.U. of January 4, 2019, n. 3, hereinafter "Ethical Rules");

HAVING REGARD to the Regulation of the Guarantor n. 1/2019 concerning internal procedures of external relevance, aimed at carrying out the tasks and exercising the powers assigned to the Guarantor;

HAVING REGARD to the note sent by the Public Prosecutor's Office at the Court of XX on January 28, 2022, which reported, in relation to an ongoing trial before the XX Court:

- the dissemination, on January 22, 2022, in the print edition of the newspaper La Gazzetta di Parma (on page 12), accompanying an article titled "XX," of an image that depicted - in violation of sector regulations - the alleged perpetrator of a murder, wearing an anti-Covid personal protective device, between two prison police officers, in an evident state of physical restraint, while accessing the judicial offices;
- the circumstance that, unlike another photo, similar but not identical, present in the online version of the newspaper on January 21, 2022 (the day of the hearing), in the print edition the handcuffs were not even pixelated, a measure deemed inadequate based on what was provided by the Guarantor in provision n. 85 of February 25, 2021;

HAVING REGARD to the documentation attached to the aforementioned note and in particular the photo accompanying the referenced article published in the print edition of the newspaper, as well as the further photograph of the defendant still in handcuffs (albeit pixelated), present in the online version of another article published by La Gazzetta di Parma on January 21, 2022, titled "XX";

CONSIDERING that from the subsequent research carried out by the Office, it was found that accompanying this last publication, available at the link: <https://...>, there was a photograph, different from the one subject to the aforementioned report, which instead depicts the subject sitting partly with their back turned, still wearing a personal protective device required by anti-Covid regulations;

CONSIDERING, furthermore, that the online version of the article, already appearing in the print edition of La Gazzetta di Parma, and available at the link: <https://...>, is currently not accompanied by any photograph;

HAVING REGARD to the note from this Authority dated November 24, 2022, which, pursuant to art. 166, paragraph 5, of the Code, while acknowledging this last circumstance, as well as the fact that the image accompanying the other online article referenced in the note of the Public Prosecutor's Office had been removed and replaced with another and different photograph, communicated to the data controller the initiation of the procedure for the possible adoption of the measures referred to in art. 58, par. 2, of the Regulation and also notified, to the same data controller, the legal violations, identified in

this case as the violation of art. 5, par. 1, lett. a), of the Regulation, also taking into account the provisions of art. 144, paragraph 6-bis of the Code of Criminal Procedure, as well as art. 137, paragraph 3 of the Code and arts. 6 and 8 of the Ethical Rules;

HAVING REGARD to the note of December 9, 2022, in which La Gazzetta di Parma represented that: the aforementioned communication of the initiation of the procedure was not unexpected due to the acknowledgment of the erroneous publication of the image; the same responsible director was summoned by the Disciplinary Council of the Order of Journalists of Bologna to respond to this publication; the responses provided on that occasion, despite the awareness of the failure to comply with the ethical rules, were contextualized based on an impulsive behavior assumed "in the immediacy of an event that had greatly shaken the entire Parma community"; also regarding the publication of the pixelated photo, it was understood that the dignity of the subject involved had not been sufficiently protected, mistakenly believing that it could "provide a graphic representation of the atrocity of the act and serve as a warning"; the erroneous publication was supported by "a subtle environmental conditioning" linked to the desire to inform readers correctly; it was "a lapse that has not been repeated," which was followed by "verbal communications to the editorial staff to recommend caution in similar cases"; in the immediate following days, "prompt action was taken for the removal of the image.

****Contested**** and it has been arranged ****to replace both the photo that accompanied the web version of the article and the digital edition (accessible for a fee to all subscribers)****, with the belief that the effects of a wrong choice have been mitigated; the management of the publishing company has consulted with the DPO in order to examine the incident and identify the most suitable technical-organizational measures to prevent similar episodes from occurring; in particular, the internal procedure for the examination and approval of images to be published in the various editions of the newspaper has been implemented, concerning news cases in which the personal data involved could harm the rights and fundamental freedoms of the individuals concerned, through a double level of assessment that takes into account the instructions regarding the processing of personal data and compliance with ethical rules, primarily by the journalist responsible for drafting the article, and subsequently by the central office and the responsible director, with the possibility of consultation with the DPO in doubtful cases; it has also been arranged ****to initiate an enrichment of the operational instructions assigned to the editorial journalists, integrating them with practical examples**** and a reference to the ethical rules, *****exemplified through the measures (...) adopted by the Authority*****;

****CONSIDERING**** that, unless the act constitutes a more serious crime, anyone who, in a proceeding before the Guarantor, falsely declares or certifies news or circumstances or produces false acts or documents is liable under Article 168 of the Code ****"Falsehood in declarations to the Guarantor and interruption of the execution of the tasks or the exercise of the powers of the Guarantor"*****;

****CONSIDERING THAT:****

- the case in question must be classified under the treatments carried out for journalistic purposes and that therefore Articles 136-139 of the amended Code and the aforementioned Ethical Rules apply in their entirety;
- Article 137, paragraph 3, of the Code and Article 6 of the Ethical Rules identify as a limit to the dissemination of personal data for the described purposes the principle of *****"the essentiality of information regarding facts of public interest,"**** which the journalist is required to respect in the exercise of the right to report;
- Article 8 of the aforementioned Ethical Rules specifically imposes, save for the essentiality of information, not to provide information or publish images or photographs that are harmful to the dignity of the individuals involved in news events, providing that, in the case of persons in detention, the journalist refrains from taking or reproducing images and photos in the absence of the relevant consent, and the same Court of Cassation (Cass. civ., sec. II, judgment of June 6, 2014, no. 12834) has stated that *****"the publication in a newspaper of the photo of a person coinciding chronologically**

with their arrest must respect, for the purposes of its legitimacy, not only the limits of essentiality to illustrate the content of the news and the legitimate exercise of the right to report (...) but also the particular precautions imposed to protect the dignity of the person portrayed by Article 8, first paragraph of the ethical code of journalists, which constitutes an integrative normative source.”** In the same ruling, the Supreme Court also noted that ***“the investigation into compliance with the aforementioned limits in the publication of the photo must be conducted with greater rigor than that relating to the simple publication of the news, taking into account the particular potential to harm the dignity of the person, connected to the typical emphasis of the visual tool and its greater suitability for a decontextualized dissemination that is uncontrollable by the person portrayed.”**

****CONSIDERING**** that compliance with the aforementioned Ethical Rules constitutes an essential condition for the lawfulness and correctness of the processing of personal data (Article 2-quater of the Code);

****CONSIDERING****, furthermore, that Article 114, paragraph 6-bis of the Code of Criminal Procedure expressly prohibits ***“the publication of the image of a person deprived of personal liberty captured while they are subjected to the use of handcuffs on their wrists or other means of physical coercion, unless the person consents”;

****CONSIDERED****, for the reasons stated above, that, in the specific case, the dissemination of photos depicting the individual in an evident state of physical constraint is to be considered in contrast with Article 5, paragraph 1, letter a), of the Regulation, with Article 137, paragraph 3, of the Code, as well as with Articles 6 and 8 of the Ethical Rules and that the related processing, as carried out in the aforementioned manner, is to be considered unlawful;

****CONSIDERING**** that in the course of the proceedings it has emerged that:

- in the days immediately following the publication, the data controller promptly removed the flagged image accompanying the print article from the online version of the same article;
- in addition to the removal, the data controller also replaced the photo that accompanied the online version of the other article, also referenced in the note from the Prosecutor's Office;
- they admitted to having acted based on an erroneous assessment, in the legitimate exercise of the right to report, without any intent to harm the legal sphere of the subject portrayed;
- they acknowledged having implemented internal technical-organizational measures to prevent the recurrence of similar episodes to the one contested;

CONSIDERING, however, that La Gazzetta di Parma has already been responsible for a previous violation of sector regulations regarding the improper publication of the personal details and photograph of a deceased minor due to illness and has been the recipient of a prohibition order from the Authority concerning the further dissemination, including online and in the historical archive of the publication, of such data (see provision no. 90 of April 4, 2019, web document no. 9113909);

CONSIDERING therefore:

in light of the violations identified above, that it is necessary to adopt a specific injunction against La Gazzetta di Parma S.r.l. pursuant to Articles 166, paragraph 7, of the Code and 18 of Law no. 689/1981, for the application of the administrative pecuniary sanction provided for by the combined provisions of Articles 2-quater, 166, paragraph 2, of the Code, and 83, paragraphs 3, 5 of the Regulation and to order, against the same holder, pursuant to Article 58, paragraph 2, letter f), of the Regulation, the measure of prohibition of further processing of the images subject to this proceeding or any other similar images, as they are harmful to the dignity of the subject portrayed, due to the state of physical constraint in which they were found, except for mere preservation for potential use in judicial proceedings;

NOTING that for the determination of the amount of the pecuniary sanction, it is necessary to take into account the elements indicated in Article 83, paragraph 2, of the Regulation and that in this case it is necessary to consider the following aggravating circumstances:

- a) the harmfulness, for the dignity and privacy of the interested party, of the conduct that led to the dissemination of photographs depicting them in an evident state of physical constraint (Article 83,

paragraph 2, letter a) of the Regulation);

b) the existence of a previous violation committed by the data controller regarding the unlawful dissemination of photos accompanying a journalistic article (see Article 83, paragraph 2, letter e) of the Regulation) and the following mitigating circumstances:

c) the limited scope of the violation, which concerned only one subject (see Article 83, paragraph 2, letter a) of the Regulation);

d) the purposes pursued by the data controller, attributable to the exercise of the right to report and the freedom of information (see Article 83, paragraph 2, letter a) of the Regulation) and, therefore, the necessity to ensure, in this context, the related balancing with the fundamental right of the interested party to the protection of their dignity and privacy, as established by the Regulation (Article 85) and the Code (Articles 136 et seq.);

e) the acknowledgment by the data controller of having acted based on an erroneous assessment of the circumstances and in any case without the intention of harming the legal sphere of the interested party (see Article 83, paragraph 2, letter b) of the Regulation);

f) the measures adopted by the data controller, with the company having promptly removed the reported image accompanying the printed article in the online version in the days immediately following the publication, as well as replacing the photo that accompanied the online version of the other article mentioned in the Prosecutor's note (see Article 83, paragraph 2, letter c) of the Regulation);

g) the economic and professional conditions of the offender (Article 83, paragraph 2, letter k), taking into account what emerged in the financial statements for the year 2021 and in the prospectus relating to the pre-closing management data for 2022;

CONSIDERING the above parameters and the principles of effectiveness, proportionality, and deterrence indicated in Article 83, paragraph 1, of the Regulation;

CONSIDERING that, based on the overall elements indicated above, the administrative pecuniary sanction should be applied in the amount of €10,000.00 (ten thousand), equal to 0.05% of the maximum penalty, against La Gazzetta di Parma S.r.l.;

CONSIDERING also that, pursuant to Articles 166, paragraph 7, of the Code, and 16, paragraph 1, of the Regulation of the Authority no. 1/2019, the publication of this provision on the website of the Authority should proceed as an accessory sanction;

CONSIDERING that the prerequisites exist to proceed with the annotation in the internal register of the Authority referred to in Article 57, paragraph 1, letter u), of the Regulation, regarding the measures adopted in this case in accordance with Article 58, paragraph 2, of the same Regulation;

HAVING SEEN the documentation on file;

HAVING SEEN the observations made by the Deputy Secretary General pursuant to Article 15 of the Regulation of the Authority no. 1/2000;

REPORTING the lawyer Guido Scorza;

ALL OF THE ABOVE HAVING BEEN STATED, THE AUTHORITY

pursuant to Article 58, paragraph 2, letter f), of the Regulation, orders La Gazzetta di Parma S.r.l. to prohibit further processing of the images subject to this proceeding or any other similar images, as they are harmful to the dignity of the subject portrayed, due to the state of physical constraint in which they were found, except for mere preservation for potential use in judicial proceedings;

ORDERS

pursuant to Articles 58, paragraph 2, letter i) and 83 of the Regulation La Gazzetta di Parma S.r.l. based in Parma, Via Mantova, 68. C.F./P.IVA 02361510346 to pay the sum of €10,000.00 (ten thousand) as an administrative pecuniary sanction for the violations indicated in the motivation, representing that the offender, pursuant to Article 166, paragraph 8, of the Code has the option to settle the dispute, by payment, within thirty days.

days, in an amount equal to half of the imposed sanction;

ORDERS

the aforementioned Company, in case of failure to resolve the dispute pursuant to Article 166, paragraph 8, of the Code, to pay the sum of €10,000.00 (ten thousand) according to the methods indicated in the annex, within 30 days from the notification of this provision, under penalty of the

adoption of the consequent executive acts in accordance with Article 27 of Law No. 689/1981.

DECIDES

a) pursuant to Article 166, paragraph 7, of the Code, the full publication of this provision on the website of the Guarantor and

b) pursuant to Article 17 of Regulation No. 1/2019 of the Guarantor, the annotation in the internal register of the Authority referred to in Article 57, paragraph 1, letter u), of the Regulation, regarding the measures adopted in this case in accordance with Article 58, paragraph 2, of the same Regulation.

Pursuant to Article 78 of the Regulation, as well as Articles 152 of the Code and 10 of Legislative Decree No. 150 of September 1, 2011, an appeal against this provision may be filed with the ordinary judicial authority, with a petition submitted, alternatively, to the court of the place where the data controller resides or has its registered office or to the court of the place of residence of the data subject, within thirty days from the date of communication of this provision or within sixty days if the petitioner resides abroad.

Rome, May 17, 2023

THE PRESIDENT

Stanzione

THE REPORTER

Scorza

THE DEPUTY SECRETARY GENERAL

Filippi